CONSTABLE MUKANYA GILBERT 081592L
and
CONSTABLE MACHETU M 085490Y
and
CONSTABLE MUGWAGWA R 085490Y
versus
COMMISSIONER GENERAL OF POLICE
and
POLICE SERVICE COMMISSION
and
SUPERINTENDENT NYAHANANA (TRIAL OFFICER)

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 1 & 12 June 2026

Opposed Application

N Mugiya, for the applicants
F Chimunoko with *C S Matambo*, for the 1st & 2nd respondents
No appearance for the 3rd respondent

DEMBURE J: On 1 June 2026, the court heard argument from the parties' legal practitioners and thereafter reserved its judgment *sine die*. Before me is an opposed court application for a *declaratur* and consequential relief. The application is instituted in terms of s 14 of the High Court Act [*Chapter 7:06*]. The applicants seek the following relief:

> "IT IS ORDERED THAT:
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> 1. The 1st Respondent and 2nd Respondent's failure to reinstitute the Applicants into the police service be and is hereby held to be unlawful and wrongful.
> 2. The 1st and 2nd Respondents are ordered to reinstate the Applicants into the police service forthwith or at least not later than three (3) days from the date of this order.
> 3. The 1st and 2nd Respondents are ordered to pay costs of suit on a client-attorney scale jointly and severally, one paying the other to be absolved."

THE BACKGROUND

It is common cause that on 18 February 2016, the applicants were convicted of contravening para 35 of the Schedule to the Police Act [*Chapter 11:10*] (*"the Act"*) before the

trial officer, Superintendent Nyahanana, the fourth respondent herein. They were each sentenced to pay a fine of US$10. The applicants sought to appeal against the fourth respondent's decision in terms of s 34 of the Act, and it was alleged that the trial officer refused to accept their papers. This culminated in the applicants having to approach the court in 2016 for a declaratory order and consequential relief. The matter was registered under Case No. HC 3607/16. In the judgment handed down before ZHOU J (as he then was) on 3 May 2017 the court declared the refusal by the respondents' therein to accept the applicants' appeal in terms of s 34 of the Police Act wrongful and unlawful, directed the respondents to accept the applicants' notice of appeal and determine it in accordance with the law and that the respondents had to pay the costs of suit.

The applicants pleaded that the respondents had been refusing to comply with the above order until 18 November 2024. On 24 November 2024, the applicants, through their legal practitioners, wrote to the respondents, demanding that they be reinstated on the basis of what they claimed was by operation of the law. They contended that the appeal in terms of s 34 of the Act automatically suspends the decision appealed against. I hasten to state that from the applicants' papers before me, there was nothing stated as to how they ceased to be members of the police force or as to their discharge as members under the second defendant. They further contended that the respondents are in contempt of court as they have not reinstated them to their former positions. It was also averred that their reasons for not reinstating them were a violation of s 34(7) of the Act. They argued that, since the respondents have now accepted their notice of appeal, they ought to be reinstated pending its determination, as the law directs. It was, therefore, their view that the first and second respondents' conduct is clearly wrongful and unlawful, hence the draft relief sought.

The first respondent, on the other hand, contended that, despite the order of 3 May 2017, which directed him and the second respondent to accept and determine the appeals in terms of the law, the applicants ultimately submitted a letter indicating their intention to lodge their appeals on 17 November 2024. They finally lodged their appeals on 8 December 2024. He denied that he had refused to accept the appeals following the court order, as they did not submit any until 8 December 2024. It was contended that the noting of an appeal in terms of s 34 of the Act suspends the execution of the sentence and nothing more. The appeal does not automatically

suspend other administrative actions that cascade from the conviction, including the applicants' dismissals.

It was further contended that the applicants did not pursue their application for reinstatement under HC 5669/17, which was dismissed for want of prosecution. The first respondent also averred that the applicants' appeal papers had been accepted despite the appeals having been filed seven years after obtaining the court order under HC 3607/16. It was also contended that s 34(7) of the Act does not automatically trigger the reinstatement of the applicants; instead, it suspends the execution of their sentences. There was nothing unlawful and wrongful in his conduct in this case.

As for the second respondent, it was pleaded that the applicants only wrote a notice of appeal to their office and did not lodge their grounds of appeal. Therefore, no appeal was processed. The second respondent also contended that the applicants did not follow the procedures in submitting their appeal against discharge as stipulated in s 15(1)(a) and (b) of the Police (Trials and Boards of Inquiry) Regulations, 1965 (*"the Regulations"*).

The applicants filed an answering affidavit denying the averments in the respondents' opposing affidavits. What I found interesting is that the second respondent related to the notice of appeal filed by the applicants against their discharge to the second respondent, the Police Service Commission, which the applicants did not pursue by filing the grounds of the appeal. The applicants did not relate to their discharge from the police force save to simply deny the averments and stating that the issue was now *res judicata*. An objection in limine was also raised in the answering affidavit, alleging that the first respondent's affidavit was commissioned by Phanuel Kapasura, who is a lawyer to the deponent in the same office, but the point was not pursued in the applicants' heads of argument or at the hearing. It was clearly abandoned. At the hearing, the parties' legal practitioners made the following submissions.

SUBMISSIONS FOR THE APPLICANT

Mr *Mugiya* submitted that this is an application for a declarator. He further stated that he abided by the papers filed of record. Counsel went on to argue that when a member is convicted by a single officer in terms of s 34 of the Police Act, he can appeal to the Commissioner General. In terms of s 34(7) of the Act, the trial officer's decision is suspended. If the sentence is

suspended, that has the effect of suspending the decision. Prior to the sentence, the appellant would be a member, and his status is not affected by the judgment, in particular, the conviction. If the sentence is not suspended, it is what affects the status of a member in terms of ss 48 and 50 of the Act.

It was further argued that when the respondents refused to accept the appeals, they proceeded to discharge the applicants on the basis of the sentence, which ZHOU J then suspended. I must state that this argument is not in sync with the applicants' pleadings before me, which are completely silent as to how they lost their status as members or were discharged. Mr *Mugiya* also submitted that what happened thereafter is a nullity. That the moment they accept the appeals, the discharge falls away by operation of the law. The Commissioner General of Police has since accepted that the appeals are filed and is processing them. He cannot process appeals of people who are not members of the police force. He must reinstate them. He is not the employer. The reference to the application for reinstatement of the matter in HC 5669/17 is of no consequence. The matter concerned compelling the respondents to accept the appeals; once they accepted them, there was no need to compel them.

SUBMISSIONS FOR THE FIRST AND SECOND RESPONDENTS

Conversely, Mr *Chimunoko* argued that under s 40 of the Police Act, one may be held liable for offences committed while still a member of the police force. A member can appeal to the Commissioner General. The applicants are not being candid with the court. The applicants were not discharged from the police force based on the conviction by the trial officer. An appeal against conviction and sentence does not lead to a suspension of a discharge. The decision by the trial officer does not lead to a discharge. There are separate processes for a discharge. The processes do not follow *per se* from the conviction by a trial officer. A conviction in terms of the Police Act can be appealed. In terms of s 34(7), the appeal suspends the execution of the sentence pending the appeal.

Counsel also submitted as follows. The applicants did not state whether their sentences were executed or not. An appeal against discharge cannot be raised in terms of s 34(7) of the Act. The applicants are not telling the truth in this matter. The appeal at p 22 does not have a record of proceedings of the particular matter as to how the applicants were convicted and sentenced.

There is no basis for the court to relate to the appeal. The law on discharge is premised on ss 48, 49, and 50 of the Act. The applicants were not discharged because of the trial by the trial officer. The applicants cannot claim a declaration to be reinstated into the police force without impugning the cause of their discharge. This is not a matter where the court can exercise its discretion in terms of s 14 of the High Court Act. The applicants are relying on the wrong law, s 34(7) of the Police Act, to challenge a discharge which can only be challenged in terms of s 51.

REPYING SUBMISSIONS FOR THE APPLICANT

Mr *Mugiya* submitted that the counsel for the respondents' submissions did not deal with the case and that he was misleading the court. He contended that it is not allowed for a party to argue outside its papers. The respondents filed opposing affidavits and are consistent that the discharge was based on the same matter relating to the appeal in this matter. We are only hearing from Mr *Chimunoko* that applicants were discharged for some other offences, but not placed before the court. They only differ with us on the interpretation of s 34(7). It is Mr *Chimunoko* who says there is another conviction. The principle is that he who alleges must prove. He was giving evidence from the bar. There is no dispute as to facts. The last letter at p 26 of the record sells out Mr *Chimunoko*'s argument. There is no other conviction against the applicants.

It was also argued that s 51 applies to a situation in which a member is discharged by the Police Service Commission, the second respondent. We have not reached that stage. The discharge by the Commissioner General does not arise because of the judgment by ZHOU J, and that discharge would be premature. Technically speaking, the applicants remain members following the ZHOU J judgment and the acceptance of their appeals by the first respondent. Section 40 does not apply to them.

THE LAW

It is trite that this court has jurisdiction to grant a declaratory order with or without consequential relief in terms of s 14 of the High Court Act. The grant of such relief is within the court's discretion. For the court to grant a *declaratur*, the applicant must show that he or she is an interested person in the sense of having a direct and substantial interest in the subject matter of the litigation. The interest must also concern an existing, future or contingent right or obligation. The court does not, however, concern itself with determining abstract or academic

matters unrelated to the interest. The legal principles were fully set out in *Munn Publishing (Pvt) Ltd* v *Zimbabwe Broadcasting Corporation* 1994 (1) ZLR 337 (S) at 343-344, where GUBBAY CJ (as he then was) had this say:

> "The condition precedent to the grant of a declaratory order is that the applicant must be an interested person, in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. See *United Watch & Diamond Co (Pty) Ltd & Ors v Disa Hotels Ltd & Anor* 1972 (4) SA 409 (C) at 415 in fine; *Milani & Anor v South African Medical & Dental Council & Anor* 1990 (1) SA 899 (T) at 902G–H. The interest must relate to an existing, future or contingent right. The court will not decide abstract, academic or hypothetical questions unrelated to such interest. See *Anglo-Transvaal Collieries Ltd v SA Mutual Life Assurance Soc* 1977 (3) SA 631 (T) at 635G–H. But the existence of an actual dispute between persons interested is not a statutory requirement to an exercise by the court of jurisdiction. See *Ex p Nell* 1963 (1) SA 754 (A) at 759H–760A. Nor does the availability of another remedy render the grant of a declaratory order incompetent. See *Gelcon Investments (Pvt) Ltd v Adair Properties (Pvt) Ltd* 1969 (2) RLR 120 (G) at 128A–B; 1969 (3) SA 142 (R) at 144D–F.
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> This, then, is the first stage in the determination by the court. At the second stage of the enquiry, it is incumbent upon the court to decide whether or not the case in question is a proper one for the exercise of its discretion under s 14. What constitutes a proper case was considered by *Williamson J in Adbro Investment Co Ltd v Minister of the Interior &Ors* 1961 (3) SA 283 (T) at 285B–C, to be one which, generally speaking, showed that —
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> > '…despite the fact that no consequential relief is being claimed or perhaps could be claimed in the proceedings, yet nevertheless justice or convenience demands that a declaration be made, for instance as to the existence of or as to the nature of a legal right claimed by the applicant or of a legal obligation said to be due by a respondent. I think that a proper case for a purely declaratory order is not made out if the result is merely a decision on a matter which is really of mere academic interest to the applicant. I feel that some tangible and justifiable advantage in relation to the applicant's position with reference to an existing future or contingent legal right or obligation must appear to flow from the grant of the declaratory order sought." See also *Reinecke v Incorporated General Insurances Ltd* 1974 (2) SA 84 (A) at 93D–H.'"
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> See also *Johnsen v Agricultural Finance Corp* 1995 (1) ZLR 65 (S) at 72E-F.

APPLICATION OF THE LAW TO THE FACTS

The question which must be determined is whether the applicants have satisfied the requirements for the grant of the declaratory order, and if so, whether this is a proper case for the exercise of the court's discretion under s 14 of the High Court Act. In respect of the first stage of the inquiry, there is no dispute relating to whether the applicants have a direct and substantial interest in the right to which the order will relate. That they could be prejudicially affected by the judgment of this court was not in dispute. They were members of the police force at some point

and sought reinstatement. At one stage, this court, *per* ZHOU J in 2017, directed the respondents to accept and determine their appeals against their convictions and sentences. In para 11 of the first respondent's opposing affidavit, it is also accepted that their appeals were received in 2024, though the contention is that they were filed only seven years after the judgment in HC 3607/16. In this respect, they are indeed interested persons who can properly seek a declaration of rights.

That is not the end of the matter. I must consider whether their interest concerns an existing, future, or contingent right, and, if so, whether this is a proper case for the exercise of the court's discretion under s 14 of the High Court Act. An applicant's case for the relief sought is made in the founding affidavit. It is that case which the respondent is called upon to answer or meet. It is a settled position of the law that an application stands or falls on its founding affidavit. While a party may be permitted to supplement the allegations of facts stated in the founding affidavit, the main basis of the application remains the allegations contained in the founding affidavit. The position was set out in *Muchini* v *Adams & Ors* SC 47/13 at p 4, where ZIYAMBI JA (as she then was) held as follows:

> "It is trite that an application stands or falls on the averments made in the founding affidavit. See *Herbstein* & *van Winsen* the Civil Practice of the Superior Courts in South Africa 3rd ed p 80 where the authors state:
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> > 'The general rule, however, which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny. If the applicant merely sets out a skeleton case in his supporting affidavits, any fortifying paragraphs in his replying affidavits will be struck out.'"

See also *J.C. Conolly & Sons (Pvt) Ltd* v *R. C. Ndhlukula & Anor* SC 22/18 at p 19, para(s) 44-45.

In their founding affidavits, the applicants did not plead how they ceased to be members of the police force. They did not relate entirely to their discharge. It is not clear from the record whether they were discharged under s 48, 49 or following a board of enquiry under s 50 of the Police Act. Mr *Mugiya*, however, accepted at the hearing that they had been discharged from the police force. It is only logical that for them to claim that they ought to be reinstated, there must have been a discharge which was effected in terms of any of the above legal provisions. I would believe that is what the second respondent sought to contend in para 5 of the opposing affidavit,

when it was averred that they filed only notices of appeal against their discharge with the second respondent, but did not follow the procedure outlined in the Regulations, including also not filing the grounds of their appeals.

The applicants ought to have properly pleaded a case for reinstatement by disclosing the full record of the proceedings leading to their discharge. They pleaded a case for reinstatement as if no discharge had occurred. The applicants simply premised their application on s 34(7) of the Act, on the argument that their appeals automatically suspended the execution of their sentences and, invariably, the trial officer's decision. Before I consider the provisions of s 34(7) invoked by the applicants, I must state that the applicants were sentenced to pay a US$10 fine each. They did not state whether this sentence was executed or not. Given that they did not plead any other process or how they were discharged, the question is whether this provision, that is s 34(7) *per se* can properly found a cause of action for the declaration sought and the consequential relief of a reinstatement. I do not agree that it can be invoked to create a right for the applicants to be reinstated without the applicants impugning the cause of their discharge. The second respondent's affidavit related to their discharge and failure to follow the procedure to challenge their discharge. Without placing anything before the court as to how they were discharged or without seeking to challenge that discharge, a case for reinstatement cannot properly be made premised on s 34(7). The said s 34(7) of the Police Act reads:

> "(7) A member convicted and sentenced under this section may appeal to the Commissioner within such time and in such manner as may be prescribed against the conviction and sentence and, where an appeal is noted, the sentence shall not be executed until the decision of the Commissioner has been given." (my *emphasis*)

It is trite that the cardinal rule of interpretation of statutes is the golden rule that where the language in a statute is clear and unambiguous, the words must be given their ordinary grammatical meaning unless to do so would lead to an absurdity or repugnancy. This was affirmed in *Chihava & Ors* v *The Provincial Magistrate Francis Mapfumo N.O & Anor* CCZ 06/15 at p 6, where GWAUNZA JCC (as she then was) said:

> "The starting point in relation the interpretation of statutes generally would be what is termed 'the golden rule' of statutory interpretation. This rule is authoritatively stated thus in the case of *Coopers and Lybrand & Others v Bryant* 1995 (3) SA 761 (A) at 767;

> 'According to the 'golden rule' of interpretation, the language in the document is to be given its grammatical and ordinary meaning, unless this would result in some absurdity, or some repugnancy or inconsistency with the rest of the instrument' (*my emphasis*)"

It must also be stated that the interpretation of statutes is not an opportunity for the courts to re-write the law. Thus, this court cannot rewrite legislation under the guise of interpretation. In *Zimbabwe Revenue Authority* v *African Cigarette Company (Pvt) Ltd & Anor* SC 15/26 at p 17, para 42 GUVAVA JA restated the law succinctly as follows:

> "At this juncture, it is imperative to be reminded that courts are not at liberty to re-write legislation under the guise of interpretation; rather, courts are guided first and foremost by the ordinary, grammatical meaning of the text. Only where such meaning produces a result so unreasonable as to border on the absurd, are courts permitted to summon broader interpretive tools in the pursuit of justice. In *Zimbabwe Revenue Authority v Mukahiwa* SC 64/24 at p 6, UCHENA JA reiterated the sentiments expressed by MATHONSI JA in *John Basera v The Registrar of the Supreme Court of Zimbabwe & Ors* SC 35/22, where he aptly remarked:
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> > 'The resolution of the matter involves a purely interpretative exercise. On a literal interpretation, "if the words of a statute are clear then one must follow them even if they lead to a manifest absurdity. The court has nothing to do with the question whether the legislature has committed an absurdity." See *R v Judge of the City of London Court* [1892] 1 QB 273 at 290, and *Chegutu Municipality* v *Manyora* 1996 (1) ZLR 262 (S) at 264D-E.'
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> As has been shown, a literal interpretation of s 126 does not lead to an absurdity. It must therefore be applied as is. It is for the legislature to step in and amend the legislative provision if the interpretation does not reflect its intention." (*my emphasis*)

Section 34(7) of the Police Act merely provides for the suspension of the execution of the sentence pending the determination of the appeal. It does not state that the conviction itself is suspended. It also does not relate to any reinstatement. It also does not even speak to a discharge in relation to any other offence, either under s 48 or 49. Clearly, without pleading how the applicants were discharged, they cannot invoke s 34(7) of the Act to claim a right to reinstatement. That an appeal is now pending does not necessarily undo any other process of the discharge in terms of s 51, which the second respondent referred to, unless the applicants challenge the discharge itself.

Mr *Mugiya* appeared to re-write the law by stating that the entire decision of the trial officer is automatically suspended by an appeal. That is not what the provision says. It is clear that the member cannot start to serve the sentence before the appeal is heard, as that would, in some instances, be reversible. For example, where one is sentenced to serve a period of imprisonment, he would have served the sentence if its execution is not stayed by the time the appeal is heard. It is very clear what the legislation's intention is, and that is reflected in the plain

language it used. The provision is simply applicable to suspend a sentence pending appeal and nothing else. It does not confer on the applicants the legal right to purport to claim that they are still members where they have been discharged, without impugning the discharge itself.

I agree with Mr *Chimunoko* that the applicants have not been candid with the court. It is the law that one who seeks the exercise of the court's discretion in his favour must be candid with the court. He or she must give a full and honest account of his or her circumstances; otherwise, he or she risks his or her application being dismissed. The applicants did not attach the full record of proceedings. They did not put the court into their confidence by disclosing how they lost their status as members or were discharged from the police force. They cannot simply ride on s 34(7) without giving an account relating to their discharge. This is also because a discharge may not necessarily flow always from a conviction and sentence before a trial officer under s 34. It may also arise from a conviction for a criminal offence under s 48 or 49. The discharge may also be from an inquiry by the Board of Inquiry under s 50. To that extent, there was clearly very scant information and evidence for the court to properly exercise its discretion in terms of s 14.

There were no averments as to their discharge and the grounds for that dismissal from the police force. The court cannot act on speculation. There must be evidence showing that the applicants are entitled to the relief sought. The decision of the court before ZHOU J did not address any discharge from the police service. The applicants confirmed that they finally filed their appeals in 2024, about seven years after the judgment by ZHOU J. It was not clear at what point they ceased to be members or what led to their discharge. The pleadings did not connect their discharge to the conviction and sentence in question. There is clearly more than what meets the eye. The application cannot succeed.

DISPOSITION

The applicants have failed to show that they have any interest that pertains to an existing, future or contingent right. They invoked s 34(7) of the Police Act, which clearly does not speak to the reinstatement of a member who has since been discharged. The provision merely concerns the suspension of sentence execution pending appeal. Where the member has already been discharged, it would be imperative that the member set out the basis of that discharge and seek

that it be set aside first before a claim for reinstatement can arise. The applicants cannot rely on s 34(7) without disclosing what caused them to lose their status as members or be discharged, and linking that to the proceedings before the trial officer. One cannot seek to challenge a failure to reinstate without impugning the discharge or termination of membership itself. It is like seeking specific performance of a contract that has been cancelled without first seeking to have the cancellation set aside. It is incompetent to do so. See *Mwayera* v *Chivizhe & Ors* SC 16/16.

The founding affidavit failed to set out a clear case for the relief sought. The pleadings were utterly inadequate and insufficient to trigger the exercise of my discretion. The matter was poorly pleaded, and clearly, there was an attempt to mask the underlying developments in this case. The court cannot reward such dishonesty.

As regards costs, there is no reason to depart from the general rule that costs shall follow the cause.

It is accordingly ordered that:

"The application be and is hereby dismissed with costs."

DEMBURE J: ……..

Mugiya Law Chambers, applicants' legal practitioners
Civil Division of the Attorney General's Office, 1st & 2nd respondents' legal practitioners